

456 Bridge Road,
Cobblebank Victoria, 3338

Suspension and Expulsion Procedure

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1. Purpose

The purpose of this Procedure is to define how Rosewood College manages serious breaches of student behaviour that may result in suspension or expulsion, in accordance with the Student Behaviour Management Policy.

This Procedure establishes a clear, fair, and consistent process for:

- considering and applying suspension or expulsion
- ensuring that decisions are made in a manner that is reasonable, proportionate, and evidence-based
- upholding the principles of procedural fairness in all disciplinary decisions

This Procedure supports the College's commitment to maintaining a safe and orderly learning environment while recognising the dignity of each student and the importance of just and transparent decision-making.

2. Scope

This Procedure applies to:

- all students enrolled at Rosewood College
- the Principal and any delegated staff responsible for decisions relating to suspension or expulsion
- staff involved in the management, investigation, and documentation of serious behaviour incidents

This Procedure applies in circumstances where a student's behaviour:

- constitutes a serious breach of the College's behavioural expectations
- poses a risk to the safety or wellbeing of students, staff, or others
- involves repeated or persistent non-compliance with College expectations
- may warrant disciplinary action beyond routine behaviour management responses

This Procedure applies to behaviour occurring:

- at the College
- during activities conducted under the authority of the College, including excursions, camps, and co-curricular programs
- when a student is representing the College
- in online or digital environments where the behaviour has a direct impact on the school community

This Procedure operates in conjunction with:

- Student Behaviour Management Policy
- Student Behaviour Management Procedure
- Behaviour Incident Recording Procedure
- Enrolment Policy and Enrolment Agreement

This Procedure is to be read alongside the College's obligations relating to procedural fairness and student wellbeing.

3. Procedure

3.1 Identification and Initial Response

Where a serious behaviour incident occurs, or where a pattern of behaviour gives rise to concern, the matter is escalated to the Principal or delegated staff member.

An initial assessment is undertaken to:

- establish the nature and seriousness of the behaviour
- identify any immediate risks to the safety or wellbeing of students, staff, or others
- determine whether immediate action is required, including temporary removal from class or the school environment

Where necessary to ensure safety or to support a fair process, a student may be temporarily removed from normal activities while the matter is considered.

3.2 Consideration of Disciplinary Action

Where suspension or expulsion is being considered, the College:

- identify the relevant behaviour, rules, or expectations alleged to have been breached
- gather and consider relevant information and evidence
- assess the seriousness and context of the behaviour
- consider the student's individual circumstances, including age, maturity, and any relevant background factors

The College determines whether suspension or expulsion is an appropriate and proportionate response in the circumstances.

3.3 Procedural Fairness

Before a decision is made to suspend or expel a student, the College ensures that procedural fairness is afforded.

This includes:

- informing the student and parent(s)/guardian(s) of the concerns and the allegations being considered
- providing sufficient detail to enable a meaningful response
- providing the student and parent(s)/guardian(s) with an opportunity to respond, either verbally or in writing
- ensuring that decisions are made by an impartial and appropriately authorised person
- considering all relevant information before making a final decision

Where expulsion is being considered, the College provides an opportunity for a meeting with the student and parent(s)/guardian(s), and may allow a support person to be present.

3.4 Decision-Making

Following consideration of all relevant information, the Principal (or delegated authority) determines the appropriate outcome.

In making a decision, the College has regard to:

- the safety and wellbeing of students, staff, and the school community
- the seriousness of the behaviour
- any previous behaviour of the student
- the response of the student, including any acknowledgement or remorse
- the student's prospects for improvement and continued participation in the College

The decision is documented and communicated to the student and parent(s)/guardian(s).

3.5 Outcomes

Outcomes may include:

- no further disciplinary action, with or without additional support measures
- implementation of alternative behaviour management strategies
- suspension for a specified period
- expulsion from the College

Where a suspension is imposed, the College determines:

- the duration of the suspension
- whether the suspension is internal or external
- any conditions associated with the suspension

Expulsion is considered a serious and final measure and is only applied where it is determined to be appropriate in the circumstances.

3.6 Communication of Decision

The College communicates decisions relating to suspension or expulsion:

- verbally where appropriate
- in writing to parent(s)/guardian(s), outlining:
    - the decision

- the reasons for the decision
- the duration where relevant
- any conditions or expectations arising from the decision
- any re-entry requirements

The College maintains records of all decisions and communications in accordance with the Behaviour Incident Recording Procedure.

3.7 Re-Entry Following Suspension

Where a student returns to the College following a suspension, the College may require a re-entry process.

This may include:

- a meeting with the student and parent(s)/guardian(s)
- clarification of expectations for behaviour
- agreement on any support or conditions for return

The purpose of the re-entry process is to support the student's successful return to the College and to promote ongoing positive behaviour.

3.8 Records and Registers

All suspensions and expulsions are recorded by the College in accordance with the Suspension and Expulsion Register Procedure.

Records relating to suspension or expulsion decisions include, where applicable:

- details of the incident and decision
- evidence considered
- communications with the student and parent(s)/guardian(s)
- outcomes and any conditions imposed
- re-entry arrangements, where applicable

The Suspension and Expulsion Register is maintained in accordance with regulatory requirements and the College's record management obligations.

4. Implementation

4.1 Responsibility for Implementation

The Principal is responsible for the implementation of this Procedure and for ensuring that all decisions relating to suspension and expulsion are made in accordance with this Procedure, the Student Behaviour Management Policy, and applicable regulatory requirements.

The Principal may delegate aspects of the implementation of this Procedure to appropriately authorised staff, while retaining overall responsibility for decision-making and compliance.

4.2 Staff Responsibilities

Staff are responsible for:

- identifying and reporting serious behaviour concerns in a timely manner

- supporting the investigation and documentation of incidents
- implementing interim measures as directed to ensure safety and support procedural fairness
- participating in meetings and processes associated with behaviour management where required

Staff must ensure that all actions taken are consistent with this Procedure and that appropriate records are maintained.

4.3 Documentation and Record Management

The College maintains appropriate documentation in relation to all matters involving suspension and expulsion.

This includes:

- records of incidents and investigations
- records of communication with students and parent(s)/guardian(s)
- documentation of decisions and outcomes
- records of re-entry processes where applicable

Records are maintained in accordance with the Behaviour Incident Recording Procedure and relevant College record management requirements.

4.4 Monitoring and Compliance

The Principal is responsible for monitoring the application of this Procedure to ensure:

- decisions are made consistently and in accordance with procedural fairness
- disciplinary actions are appropriate and proportionate
- regulatory requirements are met

The Governing Authority oversees the College's compliance with the minimum standards for school registration, including the effective implementation of this Procedure.

5. Review

This Procedure will be reviewed at least every two years, or earlier if required due to:

- changes to legislation or regulatory requirements, including the *Education and Training Reform Regulations 2017 (Vic)*
- changes to College operations or behaviour management practices
- identified issues arising from the implementation of this Procedure
- direction from the Principal or Governing Authority

The Principal is responsible for initiating and overseeing the review of this Procedure.

6. Related Documents

Related documents include:

- Behaviour Incident Recording Procedure

- Student Behaviour Management Policy
- Student Behaviour Management Procedure
- Suspension and Expulsion Register Procedure